to and remains at points outside the tropics for a period of 30 calendar days or more, inclusive of the time required for travel to and from such points, shall be entitled to 40 hours of travel leave with pay: *Provided*, That such leave shall not be credited to an employee more often than once in any leave year except that, if no travel leave was credited to the employee in the preceding leave year, he may be credited travel leave twice in the current leave year: *And provided further*, That travel leave shall not be credited unless the employee returns to duty. Travel leave credited prior to January 11, 1958, shall not be taken into account in determining the right to travel leave under this section.

30. *Limitation on amount of leave granted.* The maximum amount of leave with pay, inclusive of travel leave, which may be granted at any one time shall be 720 hours: *Provided*, That this limitation may be waived in case of serious illness or disability of an employee, established to the satisfaction of the Governor or such officers as he may designate.

31. *Rate of pay for leave.* Payment for leave shall be at the same rate as that which the employee would have received had he remained on duty during the period of leave: *Provided, however*, That in the case of employees subject to the Federal Employees Pay Act of 1945, as amended, the inclusion of night pay differential in such payment shall be subject to the limitations contained in section 301 of that Act, as amended, 5 U.S.C. section 921 (Supp. V, 1958).

32. *Reporting from leave.* An employee who fails to report from authorized leave within one week after the expiration of such leave shall be subject either to disciplinary action or termination unless it is determined that the delay was not reasonably avoidable and was therefore excusable.

33. *Leave without pay.* Leave of absence without pay may be granted subject to such regulations as may be prescribed by the Governor.

34. *Regulations of Governor.* The Governor is granted continuing authority to make such additional regulations, not inconsistent with the provisions of this order, as he shall deem necessary for the completion, operation and administration of the leave system established by this order.

35. *Sick or emergency leave of teachers and certain other school employees.* Teachers and other employees of the Schools Division who are hired on a 9 or 10 month basis may be granted not more than 15 days of leave with pay during the school year to cover illness or injury, presence of contagious disease or death in the home, or other pressing personal emergency, but shall not be entitled to any other leave with pay. Such leave shall be chargeable only for absence upon days during which the employee would otherwise work and receive pay, shall be exclusive of holidays, and shall be paid for at the rate prescribed in section 31 of this order. Such leave which is unused at the end of a school year shall be accumulated for use in succeeding school years until it totals not to exceed 45 days. Such leave shall be accorded and administered as provided in such regulations, not inconsistent with this section, as may be prescribed by the Governor.

LEAVE OF ABSENCE OF NON-U.S. CITIZEN EMPLOYEES

36. *Leave privileges of non-U.S. citizen employees.* The Governor is authorized to provide by regulation for the granting of leave privileges, generally, to employees who are not citizens of the United States: *Provided*, That the leave accruing to any such employee shall not exceed 208 hours in any one year and that annual leave accruing to an employee during the leave year and not taken by him before the beginning of the succeeding leave year shall accumulate for use in succeeding leave years until it totals not to exceed 460 hours.

SEC. 2. Employees who are subject to the existing provisions of section 22 of Executive Order No. 1888 and who are in a leave-earning status immediately prior to the effective date of this order shall be given pro rata credit at the rate of 27 hours per month for the fraction of the service month immediately preceding the effective date of this order.

SEC. 3. With respect to employees who are subject to the provisions of section 36 of Executive Order No. 1888, as amended by this order, and who prior to February 22, 1959 were credited with annual leave at a higher rate than that prescribed by such section, the limitation on accumulation of leave contained in the said section 36 is hereby suspended until the beginning of the 1961 leave year: *Provided*, That at the beginning of the 1960 leave year such employees shall be subject to the limitation contained in section 23 of Executive Order No. 1888, as amended.

SEC. 4. This order shall take effect on the first day of the first, complete, biweekly pay period following the date of its promulgation.

WILBER M. BRUCKER,
Secretary of the Army.

FEBRUARY 17, 1959.

[F.R. Doc. 59-1715; Filed, Feb. 26, 1959; 8:48 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 1801]

[New Mexico 030359]

NEW MEXICO

Partially Revoking Executive Order No. 6276 of September 8, 1933

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 6276 of September 8, 1933, which withdrew lands in New Mexico for the purpose of aiding the State of New Mexico in making exchange selections as therein provided, is hereby revoked so far as it affects the following-described lands:

NEW MEXICO PRINCIPAL MERIDIAN

T. 20 S., R. 6 W.,
Sec. 9, SE¼SE¼;
Sec. 10, NE¼SW¼, S½SW¼.

The areas described aggregate 160 acres.

2. The lands are located in Luna County near the village of Nutt, New Mexico. The topography of the SE¼ SE¼ of Section 9 is smooth to moderately undulating, and the soils are shallow and rocky. The topography of the S½SW¼ and NE¼SW¼ of Section 10 is very rough and hilly, and the soils are very shallow and rocky.

3. No application for the lands may be allowed under the homestead, desert land, small tract, or any other nonmineral public law, unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

4. Subject to any existing valid rights and the requirements of applicable law, the lands are hereby opened to filing of applications and selections in accordance with the following:

a. Applications and selections under the nonmineral public land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U.S.C. 279–284), as amended, presented prior to 10:00 a.m. on March 27, 1959, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a.m. on June 26, 1959, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public land laws, other than those coming under paragraphs (1) and (2) above presented prior to 10:00 a.m. on June 26, 1959, will be considered as simultaneously filed at that hour. Rights under such appli-

cations and selections filed after that hour will be governed by the time of filing.

5. The lands have been open to applications and offers under the mineral-leasing laws, and to location for metalliferous minerals. They will be open to location for non-metalliferous minerals under the United States mining laws beginning at 10:00 a.m. on June 26, 1959.

6. Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photastic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their applications, setting forth all facts relevant to their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

7. The State of New Mexico has waived the preference right of application granted to it by subsection (c) of section 2 of the act of August 27, 1958 (72 Stat. 928; Pub. Law 85–771).

Inquiries concerning these lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Santa Fe, New Mexico.

ROGER ERNST,
Assistant Secretary of the Interior.

FEBRUARY 19, 1959.

[F.R. Doc. 59–1704; Filed, Feb. 26, 1959; 8:48 a.m.]

[Public Land Order 1802]

[62646]

FLORIDA

Withdrawing Lands for Exchange Purposes in Connection With the National Key Deer Refuge

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Florida are hereby withdrawn from all forms of appropriation under the public-land laws, including mining, mineral leasing and materials disposal, and reserved under the jurisdiction of the Secretary of the Interior for exchange purposes pursuant to the provisions of the Act of August 22, 1957 (71 Stat. 412; Pub. Law 85–164), in connection with the National Key Deer Refuge:

TALLAHASSEE MERIDIAN

T. 60 S., R. 39 E.,
Sec. 2, lot 1.
T. 65 S., R. 33 E.,
Sec. 33, lot 3.
T. 66 S., R. 27 E.,
Sec. 26, lot 10;
Sec. 34, lot 5.
T. 66 S., R. 30 E.,
Sec. 34, lot 4.
T. 66 S., R. 31 E.,
Sec. 19, lot 3;
Sec. 20, lot 1.
T. 67 S., R. 27 E.,
Sec. 14, lot 14.
T. 67 S., R. 29 E.,
Sec. 1, lot 3;
Sec. 3, Frl. NE¼NW¼.

The areas described aggregate 20.44 acres.

ROGER ERNST,
Assistant Secretary of the Interior.

FEBRUARY 19, 1959.

[F.R. Doc. 59–1705; Filed, Feb. 26, 1959; 8:48 a.m.]

[Public Land Order 1803]

[964660]

FLORIDA

Revoking Executive Order No. 3480 of June 10, 1921

By virtue of the authority vested in the President by section 2380 of the Revised Statutes (43 U.S.C. 711) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 3480 of June 10, 1921, which withdrew the following-described public lands in Florida for townsite purposes, is hereby revoked:

TALLAHASSEE MERIDIAN

T. 53 S., R. 42 E.,
Sec. 2, lot 6.

The tract described contains 41.95 acres.

The lands have been patented.

PAUL ERNST,
Assistant Secretary of the Interior.

FEBRUARY 20, 1959.

[F.R. Doc. 59–1706; Filed, Feb. 26, 1959; 8:48 a.m.]

Title 46—SHIPPING

Chapter II—Federal Maritime Board, Maritime Administration, Department of Commerce

SUBCHAPTER D—FEDERAL SHIP MORTGAGE AND LOAN INSURANCE

[General Order 29, Rev., Amdt. 1]

PART 298—FEDERAL SHIP MORTGAGE AND LOAN INSURANCE

Applications; Form and Time of Filing

Whereas, in compliance with section 4 of the Administrative Procedure Act, Notice of Proposed Rule Making was published in the FEDERAL REGISTER issue of December 20, 1958 (23 F.R. 9840); and

Whereas, the Maritime Administrator has considered the comments received; and

Whereas, the Maritime Administrator under authorities cited in said Notice has ordered that the amendment as proposed be adopted;

Now, therefore, § 298.3(c) is hereby amended to read as follows:

§ 298.3 Applications.

* * * * * *

(c) *Form and time of filing.* Applications must be in form, contain information, be accompanied by supporting documents and be certified as prescribed or approved by the Secretary. Applications involving the construction of vessels shall, until March 1, 1959, be on file with the Administration prior to the time the vessel is capable of being launched. Commencing March 1, 1959, such applications shall be on file with the Administration and approved in principle by the Secretary prior to the time the keel of the vessel is laid. Applications involving the reconstruction or reconditioning of vessels shall, commencing March 1, 1959, be on file with the Administration and approved in principle by the Secretary before the work is commenced. The time so specified for filing applications, however, shall not apply to applications filed under section 1106 of the Act, nor to applications which have been approved in principle by the Secretary prior to the effective date of this amendment. Likewise, the time so specified for filing applications shall not apply in any case in which the Secretary, prior to the effective date of this amendment, has agreed to a filing by a different time. In each case, the application and the proposed documents to implement the application when approved shall be on file with the Administration in sufficient time to permit the Secretary to make a full and complete investigation and to take all other action required in respect thereof and in any event no later than 90 days prior to the anticipated date of the closing of the transaction.

In accordance with the provisions of section 4, Administrative Procedure Act, it is deemed impracticable to delay the effective date hereof, therefore, this amendment shall be effective upon publication in the FEDERAL REGISTER.

(Secs. 204, 1108, 49 Stat. 1987, as amended, 52 Stat. 973; 46 U.S.C. 1114, 1278)

Dated: February 24, 1959.

By order of the Maritime Administrator.

[SEAL] JAMES L. PIMPER,
Secretary.

[F.R. Doc. 59–1762; Filed, Feb. 26, 1959; 9:34 a.m.]

Title 50—WILDLIFE

Chapter I—Fish and Wildlife Service, Department of the Interior

SUBCHAPTER C—MANAGEMENT OF WILDLIFE CONSERVATION AREAS

PART 17—LIST OF AREAS

National Wildlife Refuges

CROSS REFERENCE: For order withdrawing lands for exchange purposes in connection with the National Key Deer Refuge (§ 17.3), see Public Land Order No. 1802 in the Appendix to Title 43, Chapter I, *supra*.